

Mohammad Idrish v. State of U.P. & Others

Allahabad High Court · Division Bench · 27 April 2011 · 2011 SCC OnLine All 722 · C.M.W.P. No. 10592 of 2011 · **Writ petition disposed of with directions; recovery stayed pending decision on objections**

HEADNOTE

Where the licensee cannot show the mode by which a provisional assessment (for alleged theft) was sent to the consumer, the Court will presume that the consumer never received it, so that he was deprived of the opportunity of hearing contemplated by Section 126(3) of the Electricity Act, 2003 read with Clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005. The Court disposed of the petition by giving the consumer an opportunity to file objections to the provisional assessment before the Executive Engineer, who must decide them by a speaking order after a reasonable opportunity of hearing, with recovery under the citation staying meanwhile and abiding that decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)(iii)

Unproved service of a provisional assessment presumes non-receipt and denial of hearing

QUESTION

What follows where the licensee cannot show how the provisional assessment was served on the consumer?

HOLDING

The Court presumes the provisional assessment was never received, so the consumer was deprived of the opportunity of hearing under s.126(3) read with Clause 8.1(b)(iii). The consumer is to be given an opportunity to file objections, which the Executive Engineer must decide by a speaking order after a reasonable opportunity of hearing; recovery stays meanwhile and abides that decision. ¶ 13-17

LIMITING FACTS

Theft allegedly detected on 17.2.2010; the department could give no instructions on the mode of service of the provisional assessment; a copy was handed over to the consumer's counsel only in Court.

PRINCIPLE TAGS

assessment-service-must-be-proved-else-non-receipt-presumed

If the licensee cannot establish the mode of service of a provisional assessment, non-receipt is presumed and the consumer is treated as denied his s.126(3)/Clause 8.1(b)(iii) opportunity of hearing; objections must then be decided afresh by a speaking order. ¶ 13-14

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ALLEGATION / TWO OTHER CHECKINGS

The two other checkings (10.8.2010 FIR and separate assessments) were not the subject matter; the merits of the 17.2.2010 assessment were left to the Executive Engineer on the objections. ¶ 11-12, 16-17